

MASTER SERVICES AGREEMENT

This Master Services Agreement ("Agreement") is entered into as of 1 March 2026, between Acme Cloud Services Pty Ltd ("Provider") and Varun Jindal Consulting ("Client").

1. Scope of Services

Provider shall deliver cloud hosting, data storage, and technical support services as described in Schedule A. Services include 24/7 infrastructure monitoring, monthly performance reporting, and incident response within agreed service level targets. Any change to the scope of services must be documented in a written change order signed by both parties.

2. Term and Termination

This Agreement commences on the Effective Date and continues for an initial term of twelve (12) months, automatically renewing for successive twelve (12) month periods unless either party provides at least sixty (60) days written notice of non-renewal. Either party may terminate this Agreement for cause if the other party materially breaches any term and fails to cure such breach within thirty (30) days of written notice. Upon termination, Client shall pay all outstanding fees for services rendered up to the termination date.

3. Fees and Payment Terms

Client shall pay Provider the fees set out in Schedule B. Invoices are issued monthly in advance and are due net fourteen (14) days from the invoice date. Late payments accrue interest at 1.5% per month on the outstanding balance. Provider reserves the right to suspend services if payment is more than thirty (30) days overdue, following written notice to Client.

4. Data Protection and Confidentiality

Each party agrees to maintain the confidentiality of all proprietary and confidential information disclosed by the other party during the term of this Agreement. Provider shall implement industry-standard security measures to protect Client data, including encryption at rest and in transit, role-based access controls, and regular security audits. Provider shall notify Client within 72 hours of becoming aware of any data breach affecting Client data.

5. Service Levels and Support

Provider guarantees 99.9% uptime measured monthly, excluding scheduled maintenance windows communicated at least 48 hours in advance. Support requests are categorised as Critical, High, Medium, or Low priority. Critical issues affecting production systems will receive an initial response within one (1) hour. Provider shall maintain a status page providing real-time visibility into service availability.

6. Limitation of Liability

Except for breaches of confidentiality obligations, neither party's total liability arising out of this Agreement shall exceed the total fees paid by Client in the twelve (12) months preceding the claim.

Neither party shall be liable for indirect, incidental, special, or consequential damages, including loss of profits or business opportunities, even if advised of the possibility of such damages.

7. Intellectual Property

Each party retains ownership of its pre-existing intellectual property. Any custom configurations, scripts, or integrations developed specifically for Client under this Agreement shall be owned by Client upon full payment of associated fees. Provider retains ownership of its underlying platform, tools, and methodologies used to deliver the services.

8. Dispute Resolution

Any dispute arising out of or relating to this Agreement shall first be referred to good faith negotiation between senior representatives of both parties. If unresolved within thirty (30) days, the dispute shall be submitted to mediation in Melbourne, Victoria, Australia. If mediation fails, either party may pursue binding arbitration under the rules of the Australian Centre for International Commercial Arbitration.

9. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Victoria, Australia, without regard to its conflict of law principles. The parties submit to the exclusive jurisdiction of the courts of Victoria for any matters not subject to arbitration under Section 8.

10. General Provisions

This Agreement constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, or agreements relating to its subject matter. No waiver of any provision shall be effective unless in writing and signed by both parties. If any provision is found unenforceable, the remaining provisions shall continue in full force and effect.

SCHEDULE A — SERVICE DESCRIPTION

Cloud Hosting: Dedicated virtual infrastructure with auto-scaling, load balancing, and daily backups.

Data Storage: 500GB allocated object storage with versioning and 99.99% durability guarantee.

Technical Support: Business hours support (9am-6pm AEST, Monday-Friday) via email and ticketing system, with after-hours coverage for Critical priority incidents only.

SCHEDULE B — FEES

Cloud Hosting (Monthly Plan): \$120.00 AUD per month. Data Storage (500GB): \$45.00 AUD per month. Support and Maintenance: \$80.00 AUD per month. Total Monthly Fee: \$245.00 AUD plus applicable GST. Annual price reviews will be conducted each March, with any increase capped at CPI plus 2%.